

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam.

Civil Revision No. 79 of 2010.

Md. Nanu Miah.

.....Petitioner.

Vs.

Md. Abul Kashem and others.

..... Opposite-Parties.

No one appears.

..... petitioner.

No one appears.

.....for the opposite-parties.

Heard on: 14.01.2024 and

Judgment on: 15.01.2024.

This Rule was issued calling upon the opposite-party No.1-6 to show cause as to why the impugned judgment and order dated 10.09.2009 passed by the learned Additional District Judge, 1st Court, Cumilla in Miscellaneous Appeal No.9 of 2009 dismissing the appeal and affirming the order dated 25.01.2009 passed by the learned Assistant Judge, Langol Coat, Cumilla in Title Suit No.123 of 2008 rejecting the application for temporary injunction, should not be set-aside and/or pass such others or further order or orders as to this Court may seem fit and proper.

The plaintiff as petitioner instituted a Title Suit No.123 of 2008 before the Court of learned Assistant Judge, Langol Coat, Cumilla for permanent injunction restraining the defendant from dispossessing the plaintiff-petitioner to enjoy his deep tubewell installed in his land or from supplying

water in the land of the petitioners scheme by making new drain or disconnecting the electric line from his scheme.

The plaintiff's case, in short, is that the petitioner as plaintiff instituted in Title Suit No.123 of 2008 for permanent injunction that the plaintiff is a farmer and has established an association of the farmers of the locality for growing more food namely Gunaighar Laudogi and for that purpose he installed a deep tubewell in the schedule land on 25.02.1991 under supervision of B.R. D.B. Dabidwar by taking loan. Due to non-payment of loan, liability stood at a huge amount with interest and due to non-service of the deep tubewell it became useless. In such a situation upon due consent and decision of the defendant Nos.1-2,5,6 the plaintiff took responsibility for repaying the loan money and accordingly he repaid the loan money on 28.12.2002 and took possession of the concerned deep tubewell for running the same. But it was found to be useless forever by the concerned operator. Thereafter the plaintiff purchased a new deep tubewell upon consent of the local cultivators and installed the same in plot No.1616 in 2003 and started supplying water to the land of the farmers within the area of his scheme on receiving charges and passing days happily members. Although the plaintiff had been running the said tubewell from 2003 but a vested interested quarter at the instance of the local political leader started disturbing with his peaceful possession and management of the deep tubewell. The defendants in connivance with each other created obstruction from collecting charge for supplying water from the cultivators. In the event of his protest they took

shelter under a local leader ruling party and they started collecting charges/fees from the cultivators by supplying water from his tubewell. The defendants are threatening the plaintiff to dispossess him from the deep tubewell and if he starts they will obstruct him from collecting charges and prevent him from making drain for supplying water to the land of his scheme and hence the case.

The defendants case in short is that the Lawdogi is a Krishak Samobay Shamity Under the BRDB and the said shamity was taken loan for that purpose installed a deep tubewell in the schedule land in 1990 under supervision of BRDB. The plaintiff as a manager maintained to the deep tubewell from 1999 to 2004. But the plaintiff did not properly maintain the deep tubewell as scheme then the Shamobay Shamity discharged the plaintiff from the post of manager in the year of 2005. Thereafter, the Shamobay Shamity appointed the opposite party No.1 as a manager in the year of 2005. The opposite party No.1 has been in peaceful possession of the deep tubewell since in the year of 2005 without disturb. Therefore, the plaintiff's case is false and fabricated. He is not entitled to get any order of temporary injunction.

The plaintiff on 20.02.2008 filed an application for temporary injunction under Order 39 Rule 1 of the Code of Civil Procedure against the defendant-opposite parties. After filing aforesaid application the defendants filed a written objection denying all materials allegations made in the application for temporary injunction.

The learned Judge of the trial Court after hearing both the parties the aforesaid application for temporary injunction granting ad-interim order of injunction on 23.06.2008 and fixed for hearing the application for temporary injunction, thereafter on 25.01.2009 after hearing the application for temporary injunction was rejected and earlier granting ad-interim order of injunction is vacated.

Being aggrieved by and dissatisfied with the judgment and order dated 25.01.2009 passed by the learned Assistant Judge, Lungal Court, Cumilla rejected an application for temporary injunction, the plaintiff filed a Miscellaneous Appeal No.09 of 2009 before the Court of District Judge, Cumilla and the same was transferred to the Court of learned Additional District Judge, 1st Court, Cumilla who after hearing both the parties dismissed the appeal by his judgment and order dated 10.09.2009.

Being aggrieved by and dissatisfied with the aforesaid judgment and order dated 10.09.2009 passed by the learned Additional District Judge, 1st Court, Cumilla, the plaintiff preferred this revisional application under section 115(1) of the Code of Civil Procedure and obtained this Rule and the records be called for.

This matter has been appearing in the daily cause list for hearing with the name of the learned advocates for the petitioner as well as the opposite parties but no one appears to press the Rule. It is now well settled by our Appellate Division decision the case of Safar Uddin Vs. Fazlul Huq, reported in 49 DLR(AD) 151 that a Revision can be disposed of on merit in

the absence of either party or both the parties. Therefore, this matter is taken up for hearing on merit.

I have gone through the revisional application, plaint, written objection, judgment and order of the Courts below very carefully.

It turns out from the record that the plaintiff as petitioner claimed that the petitioner installed the deep tubewell in question in plot No.1616 in 2003 and has been supplying water to the land of local cultivators for irrigation as well as cultivation the scheme but both the Courts below while passing order failed to consider this vital aspect of the matter and as such they have committed error of law in passing their judgment and order resulting in an error in the decision occasioning failure of justice. He further claimed that the petitioner has a good prima-facie case and balance of convenience and inconvenience is in his favour in as much as he installed the deep tubewell in question in a new place, has been managing the same at his own capacity and supplying water to the land of local cultivators for irrigation but the Courts below have committed an error of law resulting in an error in the decision occasioning failure of justice. He further claimed that the petitioner is entitled to get an order of temporary injunction and if the defendants are not restrained by an order of temporary injunction from interfering in his peaceful possession of the deep tubewell in question, he will suffer irreparable loss and injury but both the Courts below failed to consider this legal aspect of this matter and as such the impugned judgment and order is liable to be set aside.

The opposite parties claimed that the opposite-parties are member of the Lauadogi Krishok Somobay Somity and the aforesaid Somity appointed the opposite party No.1 as a manager with resolution on 18.07.2007 in a board meeting. Bangladesh Polli Unnoyan Board issued a letter signed by the Director General for not to transfer or sale of the deep tubewell any other as per Rules and on 18.02.2008 the opposite party No.1 namely Md. Abul Kashem filed a complaint to the Polli Unnoyan Officer, Police Station-Dabidwar for investigating the allegations of misappropriation against the petitioner. The investigation of the complained was assigned to namely Md. Jamal Uddin, Assistant Polli Unnoyan Officer, Dabidwar who on conclusion of investigation submitted a report to the Upazila Nirbahi Officer against the petitioner and the allegation of misappropriation was proved against the petitioner. Thereafter, Upozilla Polli Unnoyan Officer, Dabidwar issued a notice upon the petitioner on 09.03.2008 for filing the accounts and voucher but he failed to show his accounts and voucher. Therefore, the opposite party No.01 as defendant has been in peaceful possession of the deep tubewell since in the year of 2005 without disturb and as such the Rule is liable to be discharged.

Scrutinizing the above discussion and materials on record admittedly the opposite party No.01 as defendant has been in peaceful possession of the deep tube well in favour of the Shomoboy Shamity and he connected the electricity with the deep tubewell and he supplied water to the land of local cultivators for irrigation project or scheme but the plaintiff-petitioner has no

possession the deep tubewell and he has no supplied any water to the irrigation project or scheme. The plaintiff-petitioner illegally claimed that the petitioner purchased a deep tubewell upon consent of the local cultivators. But the Somoboy Somity was decided in the board meeting with resolution and appointed the opposite party No.1 as manager in the year of 2005. Accordingly, the defendant opposite party No.01 has been serving as a manager of Shomoboy Somity with the unanimous decision in the year of 2005. The opposite party No.1 has been in peaceful possession of the deep tubewell in favour of the Shomobay Somity. Then he connected the electricity line with the deep tubewell and he supplied water to the irrigation project or scheme in the schedule scheme. The plaintiff-petitioner is illegally trying to dispossess the deep tubewell from the defendant as opposite party No.01. Earlier the plaintiff-petitioner was a manager of the aforesaid Somity, he did not properly maintain the deep tubewell. Accordingly, the Sbomoboy Shamity discharged the petitioner from the post of Manager in the year of 2005. It is clear that the petitioner has totally failed to prove prima-facie title and possession in the suit land. It appears that if the temporary injunction is granted in favour of the petitioner then the irrigation project will be hampered. Therefore, the petitioner is not entitled to get any order of temporary injunction in the instant case. The learned trial Court as well as the appellate Court below have rightly and correctly rejected the application for temporary injunction. There is no any infirmity or illegality passed by the impugned judgment and order.

Nevertheless, in view of the discussion and reasons stated above, I am of the view that the impugned judgment and order by the Court's below suffers from no legal infirmity which calls for interference by this Court. Thus, I find no merit in this Rule.

In the result, the Rule is discharged.

However, there will be no order as to costs.

The impugned judgment and order dated 10.09.2009 passed by the learned Additional District Judge, 1st Court, Cumilla in Miscellaneous Appeal No.09 of 2009 dismissing the appeal and affirming the order dated 25.01.2009 passed by the learned Assistant Judge, Langol Coat, Cumilla in Title Suit No.123 of 2008 rejecting the application for temporary injunction is affirmed.

In view of the facts, it is an old case of 2008 I am inclined to direct the learned trial Court to dispose of the case as early as possible preferably within 06(six) months from the date of receipt of this judgment and order.

Let the Lower Court Records along with a copy of the judgment and order be sent to the Court concerned at once.